

24LBCV02847 24LBCV02847

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Case Number: 24LBCV02847 Hearing Date: August 13, 2026 Dept: S27

Tentative #1

BACKGROUND

On March 25, 2024, Plaintiff Jose Villa alleges tripping on the side of a step at the Port of Los Angeles, thereby causing him to fall into a glass door and/or window. On December 20, 2024, Plaintiff filed a complaint for Premises Liability and General Negligence against Defendants, Port of Los Angeles, City of Los Angeles, County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America, Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles for premises liability.

On March 27, 2025, SSA Pacific, Inc. and City of Los Angeles filed a cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract, against Plaintiff Jose Villa, U.S. Expeditors. Villa Transportation, Inc., Inner Valley Transport, Inc., and IVT Logistics Worldwide, Inc. On September 3, 2025, Cross-Complainants dismissed U.S. Expeditors.

On January 29 and February 10, 2026, City of Los Angeles dismissed the cross-complaint. On March 3, 2026, the court sustained the demurrer of Jose Villa to the first, second and third causes of action in the cross-complaint without leave to amend, and continued the hearing on the breach of contract cause of action. On March 25, 2026, the court entered an order dismissing the entire cross-complaint as to Plaintiff Villa. On April 2, 2026, the court sustained the demurrer of IVT Logistics Worldwide, Inc. to the remaining cross-complaint of SSA Pacific of America without leave to amend. On April 17, 2026, the court entered a judgment of dismissal on the SSA Pacific, Inc. demurrer. On July 16, 2026, SSA Pacific Inc. filed a notice of appeal on the demurrer to the cross-complaint.

DISCUSSION

Applicable Law

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving

party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Analysis

Defendant SSA Pacific Inc. (SSA) moves for summary judgment on the complaint for premises liability and negligence. SSA moves on grounds of denial of any dangerous condition, no evidence SSA created said dangerous condition, lack of actual notice of any dangerous condition, and lack of proximate cause evidence regarding the condition and Plaintiff's injuries.

Plaintiff in opposition contends triable issues of material fact exist as to the existence of a non-code compliant unsafe condition, whereby SSA remains liable as the permit holder and therefore in control of the premises.

SSA in reply contends Plaintiff lacks any admissible evidence establishing any triable issues of material fact. The position relies on prior use by Plaintiff and lack of any history of prior incidents by other invitees. SSA contends Plaintiff's position relies on improper, unsupported inference, including the allegedly improper curb constitutes an improper “mechanism” for the fall. The position relies on challenges to the sufficiency of the expert declaration. Finally, SSA maintains that even if causation were established, the record lacks any indication of a failure to exercise reasonable care, and basis of notice. SSA also challenges any evidence of remedial measures.

Evidentiary Objections

SSA's Objections to the Declaration of Brad Avrit, Numbers 1-14 are Overruled.

1st Cause of Action: Premises Liability

2nd Cause of Action: Premises Liability

SSA only moves summary judgment. The standard of review for both causes of action presents a singular test. “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) “In order to prevail in an action based upon a defendant’s alleged negligence, a plaintiff must demonstrate that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of his or her injuries.” (Morris v. De La Torre (2005) 36 Cal.4th 260, 264.)

Trivial Defect and Open and Obvious

SSA first relies on a characterization of the condition as either a trivial defect or open and obvious condition. “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Gov. Code, § 830.2.) “[T]o constitute a dangerous condition, the height differential, and the area surrounding it, must have posed ‘a substantial (as distinguished from a minor, trivial or insignificant) risk of injury’ when ‘used with due care in a manner in which it is reasonably foreseeable that it will be used.’” (Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1110.)

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Citation.) However, this is not true in all cases. ‘[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger. The foreseeability of injury, in turn, when considered along with various other policy considerations such as the extent of the burden to the defendant and consequences to the community of imposing a duty to remedy such danger [citation] may lead to the legal conclusion that the defendant’ owed a duty of due care to the person injured.” (Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393.) “[B]ecause the possessor or operator of a given premises is not an insurer of the safety of invitees onto his premises, he is entitled to assume that any such invitee will perceive that which should be obvious to him in the ordinary use of his [or her] senses.” (Danieley v. Goldmine Ski Associates, Inc. (1990) 218 Cal.App.3d 111, 121.)

SSA appears to rely on this position without any apparent objective support other than Plaintiff previously visiting the area within the course and scope of employment as a truck driver in variously times of day impacting lighting conditions. [Declaration of Heather Mills, Compendium of Evidence, Ex. F: Deposition of Jose Villa, 32:18-33:11, 34:10-35:2, 47:24-48:3, 52:15-53:4, Ex H: Deposition Exhibit.] The position lacks sufficient articulation establishing either an open and obvious or trivial defect defense simply based on prior visits. “A court should decide whether a defect may be dangerous only after considering all of the circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest.” (Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 927.)

Plaintiff specifically challenges any factual finding of a trivial defect due to the non-compliant code conditions, and height differential. Plaintiff also denies any open and obvious condition, but even if the specific section constituted an open and obvious hazard, Plaintiff asserts no notice of such danger.

SSA fails to shift the burden establishing either a trivial defect or open and obvious position. The position in reply regarding reliance on inference will not support the finding of insufficient evidence of a dangerous condition at the time of the incident. (See Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590-593.) Even if SSA shifted the burden, Plaintiff submits admissible expert testimony establishing triable issues of material fact as to both a trivial defect and open and obvious condition. [Declaration of Babak Kheiri, Ex. C: Declaration of Brad Avrit, PE.]

The expert concludes that the slope change constitutes an “unexpected and significant hazard for pedestrians to traverse.” Such types of area often go “unnoticed” in that a pedestrian may not necessarily recognize a danger simply based on the height differential and change, due to the lack of a “salient” visual cue. [Id., ¶¶ 7-10.] The declaration qualitatively establishes a basis for requirement of consideration by the trier of fact for any determination of the applicability of the two defenses. (See

Blumberg v. M. & T. Inc. (1949) 34 Cal.2d 226, 229-230 [Spaces in floor mats created a foreseeable and actual dangerous condition to invitees]; Martinez v. Chippewa Enterprises, Inc. (2004) 121 Cal.App.4th 1179, 1184 [Wet condition on premises constituted dangerous condition].) Nothing in this evidence constitutes a speculative position. (Lyons v. Security Pacific National Bank, supra, 40 Cal.App.4th at p. 1014.) Again, the standard requires examination of the condition at the time of the accident. Plaintiff establishes a sufficient foundation for the expert to later analyze and present a factually supported report. (San Francisco Print Media Co. v. The Hearst Corp. (2020) 44 Cal.App.5th 952, 962-963; Sanchez v. Kern Emergency Medical Transportation Corp. (2017) 8 Cal.App.5th 146, 155-156.) Plaintiff therefore establishes triable issues of material fact based on evidence of a non-code compliant area foreseeably leading to an invitee falling in the area as a result of the outdated standard. Nothing in the opposition otherwise relies on any later remediation. Such evidence remains inadmissible either way. (Evid. Code, § 1151.)

Actual or Constructive Notice

SSA denies any notice of a defective or dangerous condition. SSA represents regular inspections and denies any prior complaints. Plaintiff denies relief from liability based on prior efforts to demarcate the area. Plaintiff also notes the change to the area following the incident.

Again, the later modifications are not considered as evidence of prior notice of a dangerous condition. (Evid. Code, § 1151.) "The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence 'which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.'" (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206–1207.)

"When an unsafe condition which causes injury to an invitee has been created by the owner of the property himself or by an employee within the scope of his employment, the invitee need not prove the owner's notice or knowledge of the dangerous condition; the knowledge is imputed to the owner." (Sanders v. MacFarlane's Candies (1953) 119 Cal.App.2d 497, 501.) Denial of notice without establishing the lack of a non-trivial, dangerous condition will not meet the standard for SSA to shift the burden regarding a lack of actual or constructive notice. Again, SSA presents no address of the condition of the area at the time, and cannot dismiss the danger because of no prior incidents. Any assumption of reasonable care due to a lack of notice also falls short of the required showing to shift the burden. Even if SSA made the showing, triable issues of material fact exist regarding the reasonableness of the lapse of time regarding inspection and rectification of the dangerous condition before the incident. [Avrit Decl.] (Howard v. Omni Hotels Management Corp. (2012) 203 Cal.App.4th 403, 431 accord Ortega v. Kmart Corp., supra, 26 Cal.4th at pp. 1206-1207.)

Causation

Finally SSA denies any causation based on the denial of any dangerous condition. Again, SSA fails to shift the burden based on the lack of any factually and legally supported position establishing the lack of a dangerous condition. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.) Further triable issues of material fact exist based on Plaintiff's establishment of the dangerous condition through the unchallenged expert declaration. (See Chowdhury v. City of Los Angeles (1995) 38 Cal.App.4th 1187, 1196.) The circumstances establish a basis of causation not resolved as a matter of law in the instant motion. (Saelzler v. Advanced Group 400, supra, 25 Cal.4th. at p. 781.)

CONCLUSION

The motion for summary judgment is DENIED due to the failure to shift the burden on any and all defenses and triable issues of material fact on each challenge.

Final Status Conference and Trial remain set for October 16 and 19, 2026, respectively.

Moving party to give notice.

Tentative #2

BACKGROUND

On March 25, 2024, Plaintiff Jose Villa alleges tripping on the side of a step at the Port of Los Angeles, thereby causing him to fall into a glass door and/or window. On December 20, 2024, Plaintiff filed a complaint for Premises Liability and General Negligence against Defendants, Port of Los Angeles, City of Los Angeles, County of Los Angeles, SSA Marine, a Carrix Enterprise, SSA Marine, Inc., SSA Pacific of America, Carrix, Inc., Stevedoring Services of America, Inc., Berth 55 Warehouse, and AltaSea at the Port of Los Angeles for premises liability.

On March 27, 2025, SSA Pacific, Inc. and City of Los Angeles filed a cross-complaint for apportionment of fault, indemnification, declaratory relief, and breach of contract, against Plaintiff Jose Villa, U.S. Expeditors. Villa Transportation, Inc., Inner Valley Transport, Inc., and IVT Logistics Worldwide, Inc. On September 3, 2025, Cross-Complainants dismissed U.S. Expeditors.

On January 29 and February 10, 2026, City of Los Angeles dismissed the cross-complaint. On March 3, 2026, the court sustained the demurrer of Jose Villa to the first, second and third causes of action in the cross-complaint without leave to amend, and continued the hearing on the breach of contract cause of action. On March 25, 2026, the court entered an order dismissing the entire cross-complaint as to Plaintiff Villa. On April 2, 2026, the court sustained the demurrer of IVT Logistics Worldwide, Inc. to the remaining cross-complaint of SSA Pacific of America without leave to amend. On April 17, 2026, the court entered a judgment of dismissal on the SSA Pacific, Inc. demurrer. On July 16, 2026, SSA Pacific Inc. filed a notice of appeal on the demurrer to the cross-complaint.

DISCUSSION

Applicable Law

The pleadings frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or

plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Analysis

Defendant City of Los Angeles (City) moves for summary judgment on the complaint for premises liability and negligence. City moves on grounds of denial of any dangerous condition, no evidence the City created said dangerous condition, denial of any operational control of Berth 55, lack of actual notice of any dangerous condition, and lack of proximate cause evidence regarding the condition and Plaintiff’s injuries.

Plaintiff in opposition contends triable issues of material fact exist as to the existence of a non-code compliant unsafe condition, whereby City remains liable as the permit issuer and cannot rely on a position of a delegable duty.

City in reply reiterates the position regarding a lack of any admissible evidence establishing a basis of premises liability on a claim of a dangerous condition. City specifically challenges any creation of the dangerous condition by any City employee, and denies any actual or constructive notice of any dangerous condition. The reply acknowledges the expert testimony submitted by Plaintiff, but relies on a claim that because the area was a preexisting condition, and the lack of any prior incidents, undermines the imposition of any liability. Finally, City appears to introduce an arguably new position in reply challenging the statutory foundation of the claim under Government Code sections 830, 835, and 835.2. (Code Civ. Proc., § 437c, subd. (b)(4).)

Evidentiary Objections

Plaintiff’s Objections, Numbers 1-22 are Overruled.

On numbers 1 and 2, City establishes ownership of the land by the State of California, and its management. An objection disallowing any consideration of City as the trustee and therefore proper issuer of the permit could render any finding regarding a basis of duty owed by the City null and void given the lack of any valid operating government entity named in the action.

1st Cause of Action: Premises Liability

2nd Cause of Action: Premises Liability

City only moves summary judgment. The standard of review for both causes of action presents a singular test. “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) “In order to prevail in an action based upon a defendant’s alleged negligence, a plaintiff must demonstrate that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of his or her injuries.” (Morris v. De La Torre (2005) 36 Cal.4th 260, 264.)

Trivial Defect and Open and Obvious

Because City raises the issue of statutory liability in reply, the court addresses the fundamental basis for government liability. California Government Code section 815 provides that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person” except as provided by statute. (Govt. Code, § 815(a); *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) “[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles.” (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) “The sole statutory basis for imposing liability on public entities as property owners is Government Code section 835.” (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347.)

“Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Govt. Code, § 835.)

“The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded. (Citation.) Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations [citation] but must specify in what manner the condition constituted a dangerous condition. (Citation.) Although it is the general rule that it is a factual question whether a given set of facts and circumstances creates a dangerous condition, the issue may be resolved as a question of law if reasonable minds can come to but one conclusion. (Citations.) Accordingly, if the facts pleaded by the plaintiff as a matter of law cannot support the finding of the existence of a dangerous condition within the meaning of the statutory scheme, a court may properly sustain a demurrer to the complaint. (Citations.)” (*Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439-440.)

City first relies on a characterization of the condition as either a trivial defect or open and obvious condition. “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Gov. Code, § 830.2.) “[T]o constitute a dangerous condition, the height differential, and the area surrounding it, must have posed ‘a substantial (as distinguished from a minor, trivial or insignificant) risk of injury’ when ‘used with due care in a manner in which it is reasonably foreseeable that it will be used.’” (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1110.)

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Citation.) However, this is not true in all cases. ‘[I]t is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger. The foreseeability of injury, in turn, when considered along with various other policy considerations such as the extent of the burden to the defendant and consequences to the community of imposing a duty to remedy such danger [citation] may lead to the legal conclusion that the defendant’ owed a duty of due care to the person injured.” (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393.) “[B]ecause the possessor or operator of a given premises is not an insurer of the safety of invitees onto his premises, he is entitled to assume that any such invitee will perceive that which should be obvious to him in the ordinary use of his [or her] senses.” (*Danieley v. Goldmine Ski Associates, Inc.* (1990) 218 Cal.App.3d 111, 121.)

The motion appears to rely on this position without any apparent objective support other than Plaintiff previously visiting the area within the course and scope of employment as a truck driver in variously times of day impacting lighting conditions. [Declaration of Heather Mills, Compendium of Evidence, Ex. F: Deposition of Jose Villa, 32:18-33:11, 34:10-35:2, 47:24-48:3,

52:15-53:4, Ex H: Deposition Ex.] The reply reiterates the stance based on the lack of any prior history by others and its prior decades existence without alteration. City maintains Plaintiff lacks sufficient evidence of any defect.

The position lacks sufficient articulation establishing either an open and obvious or trivial defect defense simply based on prior visits and/or preexisting conditions. While City in reply validly presents a position regarding an alleged inability of Plaintiff to present sufficient evidence, the standard still requires consideration of the conditions at the time of the incident. History and prior practice will not relieve a landowner of liability. "A court should decide whether a defect may be dangerous only after considering all of the circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest." (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927.)

Plaintiff specifically challenges any factual finding of a trivial defect due to the non-compliant code conditions, and height differential. Plaintiff also denies any open and obvious condition, but even if the specific section constituted an open and obvious hazard, Plaintiff asserts no notice of such danger. The non-code compliant condition and lack of notice of any potential tripping hazard remains undisputed by City.

City fails to shift the burden establishing either a trivial defect or open and obvious position based on lack of evidence. (See *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590-593.) Even if City shifted the burden, Plaintiff submits undisputed expert testimony establishing triable issues of material fact as to both a trivial defect and open and obvious condition. [Declaration of Babak Kheiri, Ex. C: Declaration of Brad Avrit, PE.] The expert concludes that the slope change constitutes an "unexpected and significant hazard for pedestrians to traverse." Such types of area often go "unnoticed" in that a pedestrian may not necessarily recognize a danger simply based on the height differential and change, due to the lack of a "salient" visual cue. [Id., ¶¶ 7-10.] The declaration is unchallenged and qualitatively establishes a basis for requirement of consideration by the trier of fact for any determination of the applicability of the two defenses. (See *Blumberg v. M. & T. Inc.* (1949) 34 Cal.2d 226, 229-230 [Spaces in floor mats created a foreseeable and actual dangerous condition to invitees]; *Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184 [Wet condition on premises constituted dangerous condition].)

Actual or Constructive Notice

City also relies on the existence of the Permit to co-defendant SSA Pacific, as delegating all operational control and duty to inspect the premises to SSA Pacific. City denies any notice of prior complaints as well, which is reiterated in the reply.

Plaintiff challenges any finding of a non-delegable duty, and maintains an ongoing duty to inspect. A lack of notice of prior incidents will not relieve City from liability for a dangerous condition.

The delegation of duty position again provides no legal support, and instead only relies on the deposition of Seung-Hyun Kevin Kim, a presumed employee of the City, but no specifically identified position. [Mills Decl., Ex. A: Deposition of Seung-Hyun Kevin Kim.] Kim acknowledges the operative permit [25:23-26:11] and maintains the terms of the permit require acceptance in an "as is" condition with the occupant obligated to maintain the premises [58:20-59:23]. Kim interprets section 2.4 of the permit as a basis for the City to deny any liability for injuries occurring due to the condition of the premises. [Id, 89:9-25.]

The opinion of Kim constitutes nothing more than a statement without address of any legal standard or qualification to make this determination. City therefore fails to shift the burden establishing this defense.

Even considering the defense, no valid basis of a non-delegable duty finds support. "Where the law imposes a definite, affirmative duty upon one by reason of his relationship with others, whether as an owner or proprietor of land or chattels or in some other capacity, such persons can not escape liability for a failure to perform the duty thus imposed by entrusting it to an independent contractor. ... It is immaterial whether the duty thus regarded as 'nondelegable' be imposed by statute, charter or by common law." (*Van Arsdale v. Hollinger* (1968) 68 Cal.2d 245, 251 overruled on other grounds by *Privette v. Superior Court* (1993) 5 Cal.4th 689.)

Plaintiff cites to Government Code section 818.6 for purposes of establishing a duty to inspect regardless of any permit terms. "A public entity is not liable for injury caused by its failure to make an inspection, or by reason of making an inadequate or negligent inspection, of any property, other than its property (as defined in subdivision (c) of Section 830), for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety." (Gov. Code, § 818.6.) The indirectly worded statute imposes a duty of care on the government entity in control of its property. The existence of the permit in no way relieves City from liability on grounds of non-delegable duty. "The essential justification for this rule is one of ensuring accountability of licensees so as to safeguard the public welfare. ... If a licensee were not liable for the actions of his independent contractor, 'effective regulation would be impossible. He could contract away the daily operations of his business to independent contractors and become immune to disciplinary action by the licensing authority.' The principle that a licensee will be held liable for the acts of its agents is one that has been applied whether the agent is an independent contractor or an employee." (California Assn. of Health Facilities v. Department of Health Services (1997) 16 Cal.4th 284, 296.)

On lack of notice, again, City only cites to the deposition of the terminal manager denying any reported claims for 16 years. [Mills Decl., Ex. C: Deposition of Kevin Nielsen, 93:7-15.] The reply reiterates the lack of prior reports. As addressed above, the legally unsupported position fails to shift the burden establishing a valid basis for denial of the existence of any potentially dangerous condition simply based on lack of notice.

"When an unsafe condition which causes injury to an invitee has been created by the owner of the property himself or by an employee within the scope of his employment, the invitee need not prove the owner's notice or knowledge of the dangerous condition; the knowledge is imputed to the owner." (Sanders v. MacFarlane's Candies (1953) 119 Cal.App.2d 497, 501.) Given the finding of a non-trivial and not open an obvious hazard, triable issue of material fact exist on grounds that "that the hazardous condition existed long enough for the owner to have discovered it, if an owner exercising reasonable care would have learned of it" (Howard v. Omni Hotels Management Corp. (2012) 203 Cal.App.4th 403, 431 accord Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1206-1207.)

Causation

Finally City denies any causation based on the denial of any dangerous condition. Again, City fails to shift the burden based on the lack of any factually and legally supported position establishing the lack of a dangerous condition. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.) Further triable issues of material fact exist based on Plaintiff's establishment of the dangerous condition through the unchallenged expert declaration. (See Chowdhury v. City of Los Angeles (1995) 38 Cal.App.4th 1187, 1196.) The circumstances establish a basis of causation not resolved as a matter of law in the instant motion. (Saelzler v. Advanced Group 400, supra, 25 Cal.4th. at p. 781.)

CONCLUSION

The motion for summary judgment is DENIED due to the failure to shift the burden on any and all defenses and triable issues of material fact on each challenge.

Final Status Conference and Trial remain set for October 16 and 19, 2026, respectively.

Moving party to give notice.